

Satish Sharma v. State of U.P. — writ against 30.7.2017 notice withdrawn with liberty under clause 6.5

High Court of Judicature at Allahabad · Division Bench · 18 August 2017 · WRIT - C No. 36593 of 2017 · **Writ petition withdrawn with liberty to raise a clause 6.5 dispute.**

HEADNOTE

A writ challenging a 30.7.2017 notice was withdrawn with liberty after the Court recorded that a dispute under clause 6.5 of the Electricity Supply Code, 2005 could be raised against such a notice.

FACTUAL SUMMARY

Satish Sharma filed a writ petition in the Allahabad High Court challenging a notice dated 30 July 2017 issued by respondent no. 3. Counsel for the State and for respondent nos. 2 and 3 appeared. The Court recorded that it was not in dispute that a dispute against such a notice could be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. Confronted with that, counsel for the petitioner sought withdrawal of the writ with liberty to raise the dispute under clause 6.5.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

dispute-against-notice

HOLDING

A notice of the kind dated 30 July 2017 may be the subject of a dispute under clause 6.5 of the Electricity Supply Code, 2005. The writ challenging that notice was disposed of as withdrawn with liberty to raise such a dispute. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging a 30.7.2017 notice was withdrawn with liberty after the Court recorded that a dispute under clause 6.5 of the Electricity Supply Code, 2005 could be raised against such a notice. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 30.7.2017 NOTICE

Writ withdrawn without examining the notice; liberty reserved to raise a clause 6.5 dispute. ¶ 1